



AGENT: Mrs Beth Deacon-Bates
Stanfords
The Livestock Market
Wyncolls Road
Colchester
CO4 9HU

APPLICANT: Mr D Akers
Euroview Manufacturing Ltd
Monks Farm
Priory Road
Tiptree
CO5 0QE

TOWN AND COUNTRY PLANNING ACT 1990

APPLICATION NO: 25/01011/OUT

DATE REGISTERED: 14th July 2025

Proposed Development and Location of Land:

**Outline Planning Application (all matters reserved) - Up to 30 dwellings plus associated infrastructure including a new access onto Sladburys Lane.
Land to The West of Sladburys Lane Clacton On Sea Essex**

THE TENDRING DISTRICT COUNCIL AS LOCAL PLANNING AUTHORITY **HEREBY REFUSE OUTLINE PLANNING PERMISSION** in accordance with the application form, supporting documents and plans submitted, for the following reasons

1 UNACCEPTABLE IN PRINCIPLE

The application site lies outside any defined Settlement Development Boundary and within a designated Strategic Green Gap, where new residential development is strictly controlled.

The proposal for up to 30 dwellings would conflict with Policies SP3, SPL1 and SPL2 of the Tendring District Local Plan by introducing unplanned growth in a location not identified for development and contrary to the adopted spatial strategy, which directs housing to sustainable, plan led locations within or adjoining existing settlements.

The development would also erode the openness and separation the Strategic Green Gap is specifically designated to protect, undermining its purpose and resulting in unacceptable harm to local landscape character, contrary to Policy PPL3.

While the submitted LVIA indicates that landscape and visual impacts could be limited, and notwithstanding the arboricultural information provided, these technical matters do not outweigh the fundamental in principle policy conflicts or render the site suitable for residential development.

Contrary to National Planning Policy Framework 2024 (NPPF) Paragraph 11 d) ii. the adverse impacts of granting planning permission would significantly and demonstrably outweigh the benefits, when assessed against the policies in the NPPF taken as a whole, having particular regard to key policies for directing development to sustainable locations.

The proposal therefore represents an unsustainable and inappropriate form of development, contrary to the NPPF, adopted Local Plan, and the principle of residential development on this site is unacceptable.

2 FAILURE TO SECURE PLANNING OBLIGATIONS

Paragraph 56 of the National Planning Policy Framework 2024 (NPPF) states that local planning authorities should consider whether otherwise unacceptable development could be made acceptable using planning obligations. Planning obligations should only be used where it is not possible to address unacceptable impacts through a planning condition.

The application fails to secure the necessary planning obligations required to make the development acceptable in planning terms.

In the absence of a completed Section 106 agreement, the proposal does not secure the provision of 30% affordable housing as required by Policies SP4 of the Tendring District Local Plan Section 1 and LP5 of Section 2, nor does it secure the financial contribution toward the Essex Coast Recreational Disturbance Avoidance and Mitigation Strategy (RAMS) necessary to ensure no adverse effect on the integrity of European designated sites, contrary to Policies SP2 and PPL4, and Regulation 63 of the Conservation of Habitats and Species Regulations 2017.

Although the applicant indicated a willingness to enter into such an agreement, no legal obligation has been completed, and the essential mitigation and infrastructure requirements are therefore not secured at the point of determination.

As a result, the development is contrary to the Local Plan and national legislation, and permission must be refused on this basis.

DATED: 26th January 2026

SIGNED:



John Pateman-Gee
Head of Planning and Building Control

IMPORTANT INFORMATION:-

The local planning authority considers that the following policies and proposals in the development plan are relevant to the above decision:

National:

National Planning Policy Framework 2024 (NPPF)
National Planning Practice Guidance (NPPG)

Local:

Tendring District Local Plan 2013-2033 and Beyond North Essex Authorities' Shared Strategic Section 1 (adopted January 2021)

- SP1 Presumption in Favour of Sustainable Development
- SP2 Recreational disturbance Avoidance and Mitigation Strategy (RAMS)
- SP3 Spatial Strategy for North Essex
- SP4 Meeting Housing Needs
- SP6 Infrastructure & Connectivity
- SP7 Place Shaping Principles

Tendring District Local Plan 2013-2033 and Beyond Section 2 (adopted January 2022)

- SPL1 Managing Growth
- SPL2 Settlement Development Boundaries
- SPL3 Sustainable Design
- HP5 Open Space, Sports and Recreation Facilities
- LP1 Housing Supply

LP2 Housing Choice
 LP3 Housing Density and Standards
 LP4 Housing Layout
 LP5 Affordable Housing
 PPL1 Development and Flood Risk
 PPL3 The Rural Landscape
 PPL4 Biodiversity and Geodiversity
 PPL5 Water Conservation, Drainage and Sewerage
 PPL6 Strategic Green Gaps
 PPL7 Archaeology
 PPL10 Renewable Energy Generation and Energy efficiency Measures
 CP1 Sustainable Transport and Accessibility
 CP2 Improving the Transport Network
 DI1 Infrastructure Delivery and Impact Mitigation

Supplementary Planning Documents

Essex Coast Recreational Disturbance Avoidance and Mitigation Strategy SPD 2020 (RAMS)
 Tendring Provision of Recreational Open Space for New Development SPD 2008
 Essex Design Guide
 Technical housing standards: nationally described space standard Published 27 March 2015

Local Planning Guidance

Essex Parking Guidance Part 1: Parking Standards Design and Good Practice 2024

INFORMATIVES:

Positive and Proactive Statement

The Local Planning Authority has undertaken a positive and proactive approach in assessing this application, considering all relevant national and local planning policies alongside other material considerations to reach a balanced planning judgment. Despite this, the identified issues are so fundamental that a satisfactory solution could not be achieved. Consequently, due to the significant harm outlined in the reasons for refusal, approval has not been possible.

Plans and Supporting Documents

The Local Planning Authority has resolved to refuse the application for the reason(s) set out above. For clarity, the refusal is based upon the consideration of the plans and supporting documents accompanying the application as follows, (accounting for any updated or amended documents):

- Amended Application Form (corrected Certificate B - Highways) - received 14.08.2025
- Site Plan - received 14.08.2025
- PA-10-A Amended Proposed Block Plan - received 14.08.2025
- PA-11 Proposed Storey Heights - received 08.07.2025
- Flood Risk Assessment Ref: 2409-955 (Ingent, June 2025) - received 08.07.2025
- Planning Statement - received 08/07/2025
- Planning Statement Addendum - received 30.09.2025
- Planning Statement Addendum - received 15.01.26
- Transport Assessment Ref: 24151 Issue: 2 (KMC, June 2025) - received 08.07.2025
- Tree Survey Schedule and Constraints Plan (TPS, December 2024) - received 08.07.2025
- Landscape Visual Impact Assessment (Stanfords, August 2025) - received 14.08.2025
- BNG Metric - received 11.07.2025

- Ecological Impact Appraisal (Liz Lord Ecology, Rev A, June 2025) - received 08.07.2025
- Biodiversity Net Gain (Liz Lord Ecology, Rev A, June 2025) - received 08.07.2025

The attached notes explain the rights of appeal.

NOTES FOR GUIDANCE

WHEN PLANNING PERMISSION IS REFUSED OR GRANTED SUBJECT TO CONDITIONS

APPEALS TO THE SECRETARY OF STATE

- If you are aggrieved by the decision of your local planning authority to refuse permission for the proposed development or to grant it subject to conditions, then you can appeal to the Secretary of State under Section 78 of the Town and Country Planning Act 1990.

WHO CAN APPEAL?

- Only the applicant possesses the right of appeal.
- The applicant can employ an agent to act on their behalf to make an appeal against a decision or a condition imposed on a decision.
- If someone else owns land or property that's included in your appeal, you must tell them before you start your appeal.
- Third parties (e.g. neighbours) are not allowed to make an appeal against a planning decision

WHEN CAN I APPEAL?

There are different time limits to make an appeal depending on the type of appeal and the circumstances. If enforcement action has been taken, a shorter timeline may apply. Please refer to Section 4 of [Procedural Guide: Planning appeals – England - GOV.UK \(www.gov.uk\)](https://www.gov.uk/guidance/procedural-guide-planning-appeals-england) for further information.

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| ▪ Householder application | Within 12 weeks of the decision date for an appeal against refusal, or 6 months for appeals against failure to determine or appeal against conditions |
| ▪ Minor commercial development | Within 12 weeks of the decision date |
| ▪ All other planning appeals | Within 6 months of the decision date |
| ▪ Advertisement consent | Within 8 weeks of the decision date |
| ▪ Listed building application | Within 6 months of the decision date |
| ▪ Tree preservation appeals | Within 2 months of the decision date |

MAKE AN APPEAL

- The Planning Inspectorate are moving to a fully digital service. Please make your appeal via this link: [Appeal a planning decision: Overview - GOV.UK](https://www.gov.uk/guidance/appeal-a-planning-decision-overview)
- Please ensure that you have read the latest procedural guidance for appeals prior to submitting an appeal. The latest guidance can be found at [Procedural Guide: Planning appeals – England - GOV.UK \(www.gov.uk\)](https://www.gov.uk/guidance/procedural-guide-planning-appeals-england)
- The Secretary of State can allow a longer period for giving notice of an appeal, but will not normally be prepared to use this power unless there are special circumstances which excuse the delay in giving notice of appeal.
- The Secretary of State need not consider an appeal if it seems to the Secretary of State that the local planning authority could not have granted permission for the proposed development or could not have granted it without the conditions imposed having regard to the statutory requirements, to the provisions of any development order and to any directions given under a development order.
- If you intend to submit an appeal that you would like examined by inquiry then you must notify the Local Planning Authority and Planning Inspectorate via email to

inquiryappeals@planninginspectorate.gov.uk at least 10 days before submitting the appeal. [Further details are on GOV.UK.](#)

ENFORCEMENT

As mentioned above, if an enforcement notice has been served on the same or very similar development as the development which the application relates to, a shorter timeline for the submission of your appeal may apply:

- If the enforcement notice was served before the date the decision on the application was made or before the date by which the LPA should have made their decision but not longer than 2 years before the application was made, the Planning Inspectorate must receive the appeal within 28 days from the date of the LPA's decision notice or the date by which the LPA should have decided the application.
- If the enforcement notice was served after the date the decision on the application was made or after the date by which the LPA should have made their decision and the enforcement notice was served earlier than 28 days before the expiry of the period within which the appellant can make their appeal (depending on the appeal type and circumstances – see table in 4.1 of [Procedural Guide: Planning appeals – England - GOV.UK \(www.gov.uk\)](#)), the Planning Inspectorate must receive the appeal within 28 days from the date the enforcement notice was served.